

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar
Honorable Nancy L. Fineman
400 County Center, Redwood City
Department 4, Courtroom 4C
Tuesday August 25, 2026

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept4@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

2:00 PM

LINE 1

22-CIV-00303 AETNA INC VS GILEAD SCIENCES, INC

AETNA INC
GILEAD SCIENCES, INC

DANIEL A. SASSE
MICHAEL J SHIPLEY

DEFENDANTS' MOTION TO DETERMINE APPLICABLE LAW

TENTATIVE RULING:

As confirmed in emails with the parties, the court continues the hearing to August 31, 2026 at 9:30 a.m. The parties are to provide their own court reporter.

2:00 PM

LINE 2

23-CIV-02087

ALIYA D'OYEN VS. JAMI J JAMISON, ET AL.

ALIYA D'OYEN
JAMI J JAMISON

KENNETH SELIGSON
CHARLES S PAINTER

DEFENDANTS' MOTION FOR SUMMARY JUDGMENT AND/OR SUMMARY ADJUDICATION

TENTATIVE RULING:

On the Motion for Summary Judgment and/or Summary Adjudication by Defendants James Ford, Inc., Jamie J Jamison aka Jami Stevens and Robert Jamison, incorrectly sued as Bob Jamo ("Defendants"), to the Complaint by Plaintiff Aliya D'Oyen ("Plaintiff"), the court rules as follows:

As an initial matter, the court notes that Defendants' Memorandum is unsigned. (See Defendants' Memorandum filed May 22, 2026.) "An unsigned paper shall be stricken unless omission of the signature is corrected promptly after being called to the attention of the attorney or party." (Code Civ. Proc., § 128.7, subd. (a).) Since this is a curable defect (*Walton v. Victor Valley Community College Dist.* (2026) 119 Cal.App.5th 1164, 1170, as modified on denial of reh'g (Apr. 14, 2026), review denied (July. 22, 2026)), Defense counsel shall file and serve a signed memorandum by 11:00 a.m. on August 25, 2026 and email a copy to Department 4.

Defendants' separate statement contains numerous evidentiary facts rather than material facts

Defendants improperly include numerous evidentiary facts rather than material facts in their separate statement in contravention of California Rules of Court, rule 3.1350(d)(2) ["The separate statement should include only material facts...."]. "The facts alleged or tendered in a summary judgment proceeding perform two different functions. As material facts they measure whether the plaintiff has alleged a cause of action. As evidentiary facts they establish whether the material facts have been proved." (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 884; *id.* at p. 884, fn. 6.) Courts can use their inherent power to strike undisputed facts that do not comply with the statutory requirements (*Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 499–500 ; *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 106), but they do not have to strike them. (*Young v. RemX Specialty Staffing* (2023) 91 Cal.App.5th 427, 431.) The court does not exercise its discretion to strike the facts. However, it relies upon the rule that if one fact is properly disputed, summary judgment and/or summary adjudication is denied. (See Weil & Brown, *California Practice Guide: Civil Procedure Before Trial* § 10:95.1 (TRG June 2026 update) ("Include only those facts which are *truly material* to the claims or defenses involved because the separate statement effectively *concedes* the materiality of whatever facts are included." [emphasis in original].))

Plaintiff's responsive separate statement improperly incorporates by reference other facts.

Plaintiff improperly incorporates by reference other facts instead of citing to evidence that disputes Defendants' facts. (See Plaintiff's Responses to Defendants' Separate Statement of Undisputed Material Facts nos. 74-202.) "An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers." (Cal. Rules of Court, rule 3.1350(f)(2).) Plaintiff's incorporation by reference defeats the purpose of the separate statement requirement, which is to allow the court to look at the disputed fact and the cited evidence to determine whether a triable issue of material fact exists. The Court has considered Plaintiff's responsive separate statement.

The court notes that Defendants also improperly adopt this same practice in Defendants' Reply Separate Statement. (See Defendants' Reply Separate Statement of Facts nos. 76-202.) However, Plaintiff objects to the entirety of Defendants' Reply Separate Statement, which the court sustains as set forth below.

Plaintiff failed to bookmark her appendix of evidence

Plaintiff failed to electronically bookmarked the exhibits to her appendix and the D'Oyen declaration in violation of the California Rules of Court. (See Cal. Rules of Court, rule 3.1110(f)(4).)

The failure to follow the rules makes the Court's job difficult and the parties are cautioned to follow the applicable statutes and rules in submitting documents to the court. The court notes that in its Response to Objections to Evidence, Plaintiff refers to this Court's standing order. (Resp. to Objections to Evid. Filed August 17, 2026 at p. 2.) Judge Fineman has suggestions on her department's webpage about litigating cases in front of her, but they are not standing orders.

Evidentiary Objections

Plaintiffs' evidentiary objections are ruled on as follows:

Nos. 1-4 and 7: These objections fail to comply with California Rules of Court, rule 3.1354(b). Each written objection must quote or set forth the objectionable statement or material. (Id., rule 3.1354(b)(3).) Plaintiff includes ellipses in quoting the objected material making it unclear to the court whether the objection is to the entirety of these paragraphs or only the quoted portions. Failure to comply with rule 3.1354 may be grounds for refusing to rule on evidentiary objections. (See *Hodjat v. State Farm Mut. Auto. Ins. Co.* (2012) 211 Cal.App.4th 1, 7–9 [trial court did not abuse its discretion in refusing to rule on evidentiary objections for failure to comply with CRC Rule 3.1354].) Thus, the court declines to rule on these objections because of their ambiguity.

No. 5: (Stevens Decl., ¶ 30): SUSTAINED based on lack of personal knowledge and hearsay.

Nos. 6, 8, 9: OVERRULE.

Plaintiff's objection to Defendants' Reply Separate Statement: SUSTAINED. Reply papers for a summary judgment/summary adjudication motion shall not include a separate statement. (Code Civ. Proc., § 437c, subd. (b)(4) ["The reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers."].)

Plaintiff's Complaint

This action arises out of Plaintiff's former employment with Defendants. The Complaint alleges eight causes of action: (1) Disability Discrimination (Violation of Gov. Code, § 12940(a)); (2) Violation of California Family Rights Act (Gov. Code, § 12945.2); (3) Harassment on the Basis of Disability (Violation of Gov. Code, § 12940(j)); (4) Failure to Prevent, Investigate and Remedy Discrimination, Harassment or Retaliation (Violation of Gov. Code, § 12940(k)); (5) Failure to Accommodate Disability (Violation of Gov. Code, § 12940(m)); (6) Failure to Engage in the Interactive Process to Accommodate Disability (Violation of Gov. Code, § 12940(n)); (7) Retaliation for Opposing Practices Forbidden by FEHA (Violation of Gov. Code, § 12940(h)); and (8) Wrongful Termination.

Legal Standard

A motion for summary judgment shall be granted if the papers submitted show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) A defendant has met its burden of showing that a cause of action has no merit if defendant shows that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (*Id.*, § 437c, subd. (p)(2).) If a defendant meets this burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists to that cause of action, or a defense thereto. (*Id.*) "A triable issue of material fact exists if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, in accordance with the applicable standard of proof." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).)

Because summary judgment denies the adverse party a trial, it should be granted with caution. (*Assilzadeh v. California Fed. Bank* (2000) 82 Cal.App.4th 399, 409.) Summary judgment law turns on issue finding rather than issue determination. (*Diep v California Fair Plan Ass'n* (1993) 15 Cal.App.4th 1205, 1207.) The court does not decide the merits of the issues, but merely discovers whether there are issues to be tried and whether the parties possess evidence that demands the analysis of a trial. (*Melamed v City of Long Beach* (1993) 15 Cal.App.4th 70, 76.) A motion for summary judgment is not a substitute for a bench trial. (*Assilzadeh, supra*, at 409.) The trial court's role involves no findings of fact. (*Raghavan v. Boeing Co.* (2005) 133 Cal.App.4th 1120.) Declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party. (*Aguilar, supra*, 25 Cal.4th at pp. 843-856.)

In most material respects, a motion for summary adjudication applies the same procedures as a motion for summary judgment. (*Cal. Prac. Guide Civ. Pro. Before Trial*, § 10:26 (TRG June 2026 update).)

Defendants' Notice of Motion

Defendants seek summary judgment or alternatively, summary adjudication to each/all causes of action as follows:

ISSUE ONE: Plaintiff Cannot Establish A Prima Facie Case for Disability Discrimination, which is fatal to Plaintiff's First, Fourth, Fifth, and Eighth Causes of Action in the Complaint.

ISSUE TWO: Plaintiff Was Not Denied Any Requested CFRA Leave When She Was Eligible For Such Leave And Defendants' Granted The Leave To Which She Was Entitled, which is fatal to the Plaintiff's Second Cause of Action (as to interference claims.)

ISSUE THREE: There Is No Causal Connection Between Any Request For Or Taking Of Protected Leave By Plaintiff And Any Adverse Employment Action which is fatal to the Plaintiff's Second Cause of Action (as to retaliation claims.)

ISSUE FOUR: Defendants Had Legitimate, Non-Discriminatory Business Reasons For Her Demotion and Termination And Plaintiff Cannot Prove That Defendants' Proffered Reasons For Her Demotion or Termination Are Pretext For Any Disability Discrimination, which is fatal to Plaintiff's First, Third, Fourth, Fifth, Sixth, Seventh, and Eighth Causes of Action in the Complaint.

ISSUE FIVE: Defendants Did Not Act With Malice, Oppression, or Fraud as required by Statute to Support a Claim for Punitive Damages, so Plaintiff's Claim for Punitive Damages Should Be Dismissed.

(Defendants' Notice of Motion.)

Procedurally, Defendants' arguments with respect to some causes of action are not the same issues for which Defendants seek summary adjudication as to these same causes of action. (See e.g., Defendants' Memorandum to the Fourth, Fifth and Sixth Causes of Action.) Therefore, the court's ruling as to Defendants' summary adjudication motion is limited to the issues raised in Defendants' Notice of Motion.

Plaintiff exhausted her administrative remedies with respect to allegations regarding her demotion in 2021.

Under California law, an employee must exhaust the administrative remedy provided by the Fair Employment and Housing Act (“FEHA”) by filing an administrative complaint with the Department of Fair Employment and Housing (“DFEH”) and obtaining a notice of right to sue from the DFEH before bringing suit on a cause of action under FEHA. (*Martin v. Lockheed Missiles & Space Co., Inc.* (1994) 29 Cal.App.4th 1718, 1724 (“*Martin*”).) To exhaust administrative remedies as to a particular act made unlawful under FEHA, the claimant must specify that act in the administrative complaint, even if the complaint does specify other cognizable wrongful acts. (*Ibid.*) The failure to exhaust an administrative remedy is a jurisdictional, not a procedural defect, and the failure to exhaust administrative remedies is a ground for a defense summary judgment. (*Ibid.*)

Thus, the scope of a lawsuit is limited to the claims charged in or related to allegations in the DFEH complaint and growing out of the investigation of those allegations. (*Martin, supra*, 29 Cal.App.4th at p. 1729; *Wills v. Sup.Ct.* (2011) 195 Cal.App.4th 143, 157-159.) A lawsuit that brings claims in court that are not like, or reasonably related to, the claims raised in the DFEH complaint is therefore subject to dismissal on exhaustion grounds. (*Kuigoua v. Department of Veterans Affairs* (2024) 101 Cal.App.5th 499, 508-509.)

Plaintiff’s right to sue letter limits the basis of her FEHA claims alleged in the First through Sixth Causes of Action. While Defendants focus on the date listed in Plaintiff’s DFEH complaint, April 20, 2022 (Defendants’ Sep. Statement of Undisputed Material Facts (“DSSUMF”) no. 67), the statute and case law refer to “acts.” (*Martin, supra*, 29 Cal.App.4th at p. 1724.) Plaintiff explicitly mentions demotion in her DFEH complaint:

Complainant was harassed because of complainant's race, color, family care or medical leave (cfra).

Complainant was discriminated against because of complainant's race, color, disability (physical or mental), family care or medical leave (cfra) and as a result of the discrimination 21 was terminated, **demoted**, denied reasonable accommodation for a disability, denied family care or medical leave (cfra).

Complainant experienced retaliation because complainant requested or used a disability-related accommodation, requested or used family care or medical leave (cfra) and as a result was terminated, **demoted**, denied reasonable accommodation for a disability, denied family care or medical leave (cfra).

(Defendants’ Compendium of Evidence, Ex. H, emphasis added.) Thus, reading the administrative claim liberally, as this court must do (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 254), Plaintiff’s administrative claim includes demotion. Thus, Plaintiff exhausted her administration remedy with respect to allegations regarding her 2021 demotion.

The Court Denies the Motion for Summary Judgment

As stated above, if there is one properly disputed fact, summary judgment is denied. The court finds that Plaintiff has, at a minimum, properly disputed whether Defendants had information that Plaintiff had a disability that prevented her from coming to work on time. (Response to DSSUMF no. 68.) Specifically, in 2021, Plaintiff sent an email to Dee Dannowitz and later Bob Jamison where she tied her attendance to her medical condition, which is a disability because it impacted her ability to do her job. (D'Oryen Decl., ¶¶ 7, 9, Ex. A; see also Plaintiff's Appendix Ex. D at pp. 111-113.) Plaintiff told someone at James Ford that she was late to work because she was feeling ill and her condition was difficult to manage and the response was that he did not care and that employees had to be on time to work. (Plaintiff's Appendix, Ex. D at pp. 119-120.) Jami Stevens authenticated her handwriting on a doctor's note dated June 8, 2021. (Plaintiffs Appendix Exs. A, B at p. 45:13-24.) Stevens also had many meetings with Plaintiff about her health. (*Id.*, Ex. B at 64:5-6.) Stevens was monitoring Plaintiff's restroom use when she returned from surgery. (*Id.*, at p. 141:2-4, 142:12-16.) The monitoring of Plaintiff's bathroom breaks was specific to her. (*Id.* at p. 147:3-5.) As early as May 18, according to Robert Jamison, James Ford knew that Plaintiff had fibroids, anemia, heavy bleeding, and fatigue. (*Id.*, Ex. C at p. 69:19-24; see also *id.*, at p. 70:8-9.)

Further, Plaintiff in response to DSSUMF No. 68 shows that there were more than two instances of harassment, specifically Stevens monitoring Plaintiff's, and only Plaintiff's bathroom usage and other acts by Stevens. Additionally, DSSUMF no. 72 is in dispute because Plaintiff also asked for a flexible work schedule. (Plaintiff's response to DSSUMF no. 72.)

First Cause of Action for Disability Discrimination

This cause of action for disability discrimination is based on Defendants' demotion of Plaintiff as well as her termination. (Complaint, ¶¶ 67-70.) Defendants seek summary adjudication of this claim on the ground that Plaintiff cannot establish a prima facie case of disability discrimination, as well as Defendants had a legitimate, non-discriminatory business reason for Plaintiff's demotion and termination. (Defendants' Notice of Motion, Issue One and Four.)

Where a plaintiff alleges discrimination under FEHA or as a claim for wrongful employment termination in violation of public policy, California follows the burden shifting analysis set forth in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792 ("*McDonnell*"). In the first stage, the plaintiff must establish that (1) he or she engaged in a protected activity, (2) the employer subjected the employee to an adverse employment action, and (3) a causal link exists between the protected activity and the employer's action. (*Id.* at p. 1109.) If the employee establishes these elements, thereby showing a prima facie case exists, the burden then shifts to the employer to provide evidence that there was a legitimate, non-retaliatory reason for the adverse employment action. (*Ibid.*) If the employer produces evidence showing a legitimate reason for the adverse employment action, the burden shifts back to the employee to provide substantial responsive evidence that the employer's proffered reason was untrue or pretextual. (*Ibid.*) When a defendant employer seeks summary judgment, the defendant has the initial burden. "To satisfy this initial burden in an employment discrimination case, a defendant employer must either undermine an

element of the plaintiff's prima facie case—by affirmatively negating it or showing the plaintiff cannot prove it—or provide a legitimate nondiscriminatory reason for the adverse employment action.” (*Cornell v. Berkeley Tennis Club* (2017) 18 Cal.App.5th 908, 926 [disability case].)

Defendants seek to define a disability too narrowly. “A physical disability under the FEHA includes any physical impairment that affects the neurological or immunological systems and limits a major life activity. (Gov. Code, § 12926, subd. (m)(1).) A physical disability “limits a major life activity if it makes the achievement of the major life activity difficult.” (Gov. Code, § 12926, subd. (m)(1)(B)(ii); Cal. Code Regs., tit. 2, § 11065, subd. (l)(3).) “ ‘[W]orking’ is a major life activity, regardless of whether the actual or perceived working limitation implicates a particular employment or a class or broad range of employments.” (Gov. Code, § 12926.1, subd. (c), § 12926, subd. (m)(1)(B)(iii); Cal. Code Regs., tit. 2, § 11065, subd. (l)(1)&(3)(D).) Repeated or extended absences from work for medical appointments constitute a limitation on the major life activity of working. (*Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 588– 589, 210 Cal.Rptr.3d 59.)” (*Ross v. County of Riverside* (2019) 36 Cal.App.5th 580, 594.) The evidence is sufficient to raise a disputed fact of whether Plaintiff was limited in her work because of her physical impairment, e.g. her bleeding and needing to use the restroom all the time and whether defendants’ stated reasons for demoting and terminating Plaintiff are pretextual.

As to Plaintiff’s termination, Defendants present evidence sufficient to support that they had a legitimate, non-discriminatory business reason for terminating Plaintiff. Defendants proffer evidence that they terminated Plaintiff because of her work attendance. From January 1 and April 20, 2022, Plaintiff’s work attendance was a significant and persistent problem. (DSSUMF nos. 48, 50, 52, 62, 65-66.) At the time of Plaintiff’s termination, Defendants claim they had no information that Plaintiff had a disability that prevented her from coming to work on time. (DSSUMF no. 68.) As stated above, Plaintiff provides facts demonstrating that there is a question of fact of whether they had that information.

Further, Plaintiff’s evidence raises a material fact in dispute in response to DSSUMF no. 109 that she did not request an accommodation to her schedule.

The Motion to the First Cause of Action, Issue no. 1, is DENIED.

Second Cause of Action for Violation of the California Family Rights Act (“CFRA”)

The Second Cause of Action alleges that Defendants did not advise Plaintiff of her right to leave under the CFRA or otherwise give notice of the designation of her leave as CFRA-qualifying leave. (Complaint, ¶ 80.) Defendants knew that Plaintiff required leave for her serious medical condition, but Defendants did not provide Plaintiff the necessary medical leave, did not provide any accommodations, and demoted and terminated Plaintiff’s employment in violation of CFRA. (Complaint, ¶ 83.)

Violations of the CFRA generally fall into two types of claims: (1) interference claims in which an employee alleges that an employer denied or interfered with substantive rights to protected

medical leave, and (2) retaliation claims in which an employee alleges that she suffered an adverse employment action in response to exercising the right to CFRA leave. (*Moore v. Regents of Univ. of California* (2016) 248 Cal.App.4th 216, 233.)

Besides seeking summary judgment, Defendants seek to adjudicate Plaintiff's interference and/or retaliation claims regarding her demotion and termination. (See Defendants' Notice of Motion, Issues Two and Three.)

As to Plaintiff's demotion, the facts demonstrate that she took her leave. However, there is a question of fact of whether they retaliated against her for taking the leave. While Jamison wrote that Plaintiff would be demoted upon her return from medical leave if she could not do her job, in fact, Plaintiff was demoted nine days before she went out on leave and thus never had the chance to show that her surgery would improve her job performance, which creates an inference of whether she was demoted for taking the leave and raises an issue of disputed fact.

Third Cause of Action for Harassment on the Basis of Disability

This cause of action alleges that Defendants intentionally engaged in harassment and bullying on the basis of Plaintiff's disability. (Complaint, ¶ 90.)

To establish a prima facie case of harassment under FEHA, a plaintiff must show that: (1) plaintiff was a member of a protected class; (2) plaintiff was subjected to unwelcome harassment; (3) the harassment was based on plaintiff's membership in an enumerated class; (4) the harassment unreasonably interfered with plaintiff's work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendant is liable for the harassment. (*Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876.)

Defendants argue that this claim fails because Plaintiff was not a member of a protected group after returning from medical leave. While Plaintiff's doctor stated that Plaintiff was not disabled as of January 28, 2022 (DSSUMF no. 41), this evidence is insufficient to establish that Plaintiff was not disabled as defined under FEHA. (See Gov. Code, §§ 12926, subd. (m), 12926.1, subd. (b).) Defendants therefore fail to meet their initial burden as to this argument.

Defendants also argue that the Complaint alleges two instances of harassment in which Jami Stevens allegedly yelled at Plaintiff and made negative comments about her braided hair, and that neither act has any relation to her disability. (DSSUMF no. 70.) However, Plaintiff raises a triable issue of material fact as to alleged harassment regarding monitoring Plaintiff's restroom use and recording how long Plaintiff spent in the restroom on multiple specific occasions and whether such harassment was connected to her disability. (Plaintiff's Response to DSSUMF no. 70.)

The Motion to the Third Cause of Action is DENIED.

The court proceeds to address the remainder of Plaintiff's causes of action with respect to summary adjudication only.

Fourth Cause of Action for Failure to Prevent, Investigate and Remedy Discrimination, Harassment or Retaliation, Fifth Cause of Action for Failure to Accommodate Disability and Sixth Cause of Action for Failure to Engage in the Interactive Process to Accommodate Disability

Defendants seek summary adjudication of the Fourth Cause of Action for Failure to Prevent, Investigate and Remedy Discrimination, Harassment or Retaliation and Fifth Cause of Action for Failure to Accommodate Disability on the ground that Plaintiff cannot establish a prima facie case for disability discrimination and that Defendants had a legitimate, non-discriminatory business reason for Plaintiff's demotion and termination. (Defendants' Notice of Motion, Issue One and Issue Four.) Defendants fail to show that these arguments dispose of these claims. As stated above, Plaintiff provides facts that raise a question of material fact of whether the reasons for her demotion and termination are pretext. Further, the failure to provide accommodations for the medical appointments can be a failure to accommodate and engage in the interactive process to accommodate a disability. (*Ross v. County of Riverside*, *supra*, 36 Cal.App.5th at p. 594.)

Similarly, Defendants seek summary adjudication of the Sixth Cause of Action on the ground that they had a legitimate, non-discriminatory business reason for Plaintiff's demotion and termination (Defendants' Notice of Motion, Issue Four), but they fail to show that such an analysis applies to this cause of action and, as stated above, there are material facts in dispute.

The Motion to the Fourth, Fifth and Sixth Causes of Action is therefore DENIED.

Seventh Cause of Action for Retaliation for Opposing Practices

Defendants seek summary adjudication of this retaliation claim on the ground that they had a legitimate, non-discriminatory business reason for Plaintiff's termination. (Defendants' Notice of Motion, Issue Four.) Once again, Defendants' evidence supports that they can articulate legitimate reasons for her demotion and termination. (DSSUMF nos. 179, 181-183, 186, 198.)

In opposition, Plaintiff argues that Defendants are incorrect that the only adverse action was her termination. Plaintiff claims that the Complaint also pleads the demotion itself as an adverse action. For the same reasons discussed above, Plaintiff raises a triable issue of material fact as to pretext. (Plaintiff's Response to DSSUMF nos. 179, 181-183, 186, 198.)

The Motion to the Seventh Cause of Action is DENIED.

Eighth Cause of Action for Wrongful Termination

Defendants seek summary adjudication of this claim on the ground that they had a legitimate, non-discriminatory business reason for terminating Plaintiff. (Defendants' Notice of Motion, Issue Four; DSSUMF nos. 179, 181-183, 186, 198.) Plaintiff responds that her discrimination and retaliation claim present triable issues of fact, and therefore this claim also survives. For the same reasons previously discussed, Plaintiff raises a triable issue of material fact as to pretext to

support her discrimination and retaliation claims. Accordingly, she also raises a triable issue of material fact as to this wrongful termination claim.

The Motion to the Eighth Cause of Action is DENIED.

Punitive Damages claim

Defendants offer three facts in support of their summary adjudication motion to the punitive damages claims. (DSSUMF nos. 200-202.) These facts are that Plaintiff was not disabled following her return from leave, Plaintiff was terminated by Robert Jamison on April 30, 2022, and Defendants had no information that Plaintiff had any disability that prevented her from coming to work on time at the time of her termination. (*Ibid.*) However, as set forth above, Plaintiff raises issues of disputed fact on whether she was disabled and whether Defendants had information regarding her disability

The motion to strike the punitive damages is DENIED.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 3

24-CIV-02224

CAROLYN DIXON, ET AL. VS. CYNDA WATKINS, ET AL.

CAROLYN DIXON
CYNDA WATKINS

J EDWARD KERLEY
KIRILL DEVIATOV

PLAINTIFFS' MOTION FOR SUMMARY ADJUDICATION OF PLAINTIFFS' FIRST CAUSE OF ACTION FOR DECLARATORY RELIEF AND STATE FARM'S TWENTY-SECOND AFFIRMATIVE DEFENSE

TENTATIVE RULING:

Plaintiffs Carolyn Dixon and David Bassi have moved for summary adjudication on their first cause of action for declaratory relief and Defendant State Farm General Insurance's ("State Farm") twenty-second affirmative Defense.

Plaintiffs' motion is DENIED.

The Court declines to rule on the objections filed by Defendant, as the Court does not deem the evidence subject to those objections material to its disposition of this motion. (Code Civ. Proc., § 437c, subd. (q).)

PROCEDURAL ISSUES

The Court greatly appreciates receiving the binder of the pleadings, which made the motion easier to review.

Both Plaintiffs and Defendants improperly include numerous evidentiary facts rather than material facts in their separate statement in contravention of California Rules of Court, rule 3.1350(d)(2) ["The separate statement should include only material facts...."].) "The facts alleged or tendered in a summary judgment proceeding perform two different functions. As material facts they measure whether the plaintiff has alleged a cause of action. As evidentiary facts they establish whether the material facts have been proved." (*Carlsen v. Koivumaki* (2014) 227 Cal.App.4th 879, 884; *id.* at p. 884, fn. 6.) Courts can use their inherent power to strike undisputed facts that do not comply with the statutory requirements (*Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 499–500 ; *Reeves v. Safeway Stores, Inc.* (2004) 121 Cal.App.4th 95, 106), but they do not have to strike them. (*Young v. RemX Specialty Staffing* (2023) 91 Cal.App.5th 427, 431.) The court does not exercise its discretion to strike the facts. Further, both sides appear to admit that the facts are undisputed and the issue is one of law based upon the language of the policies and statute, but then include irrelevant facts, which has made the court's job harder.

Plaintiffs' separate statement improperly incorporates by reference other facts.

Plaintiffs improperly incorporates by reference the facts for the summary judgment on the twenty-second affirmative defense. Plaintiffs' incorporation by reference defeats the purpose of the separate statement requirement, which is to allow the court to look at the disputed fact and the cited evidence to determine whether a triable issue of material fact exists.

LEGAL STANDARD

A motion for summary judgment shall be granted if the papers submitted show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) A defendant has met its burden of showing that a cause of action has no merit if defendant shows that one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (*Id.*, § 437c, subd. (p)(2). If a defendant meets this burden, the burden shifts to plaintiff to show that a triable issue of one or more material facts exists to that cause of action, or a defense thereto. (*Id.*) "A triable issue of material fact exists if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion, in accordance with the applicable standard of proof." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).)

Because summary judgment denies the adverse party a trial, it should be granted with caution. (*Assilzadeh v. California Fed. Bank* (2000) 82 Cal.App.4th 399, 409.) Summary judgment law turns on issue finding rather than issue determination. (*Diep v California Fair Plan Ass'n* (1993) 15 Cal.App.4th 1205, 1207.) The court does not decide the merits of the issues, but merely discovers whether there are issues to be tried and whether the parties possess evidence that demands the analysis of a trial. (*Melamed v City of Long Beach* (1993) 15 Cal.App.4th 70, 76.) A motion for summary judgment is not a substitute for a bench trial. (*Assilzadeh, supra*, at 409.) The trial court's role involves no findings of fact. (*Raghavan v. Boeing Co.* (2005) 133 Cal.App.4th 1120.) Declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party. (*Aguilar, supra*, 25 Cal.4th at pp. 843-856.)

In most material respects, a motion for summary adjudication applies the same procedures as a motion for summary judgment. (*Cal. Prac. Guide Civ. Pro. Before Trial*, § 10:26 (TRG June 2026 update).)

BACKGROUND

Brief Factual Summary

Plaintiffs' home was insured by Defendant State Farm for the period April 15, 2020, to April 15, 2021. (UMF 1.) On December 14, 2020, the Dixon house suffered a fire loss. (UMF 11.)

In a January 25, 2021, letter State Farm informed Plaintiffs: "We have requested a detailed building damage estimate for the repairs to your home The building damage settlement

amount will be based on the estimate prepared; however, supplemental payments can be considered if additional repairs or increased charges are necessary[.]” The letter further stated: “State Farm® will pay to repair or rebuild covered building property subject to the terms and conditions set forth in your policy” and to “refer to your policy for a complete explanation of your benefits.” (UMF 14, 15.)

On March 22, 2021, State Farm wrote to Plaintiffs stating it was paying \$161,718.01 on the dwelling based on its own attached estimate for repairs. The State Farm estimate amount of \$161,718.01 was based on Replacement Cost Value (RCV). (UMF, 17.) The State Farm estimate defines Replacement Cost Value (RCV) as the “[e]stimated cost to repair or replace damaged property.” (UMF, 18.)

After Plaintiffs sought appraisal, on December 9, 2022, an appraisal award issued stating the “Replacement Cost Value” (\$381,000) of the dwelling repairs, which excluded depreciation. (UMF, 22; Schaffer Decl., Ex. F, Appraisal Award, at p. 1, 2; and Ex. A. (to Appraisal Award), at p. 34.)

On February 26, 2024, Plaintiffs emailed to State Farm their replacement benefits claim submission seeking reimbursement of their incurred repair costs, totaling \$1,043,391.10, up to their policy limits, minus amounts already paid by State Farm.

On March 22, 2024, State Farm, through its counsel Demo, informed the Plaintiffs as follows in relevant part:

As you know, State Farm previously paid you the sum of \$381 ,000 under the Policy for the covered cost to repair the limited areas of your house which were damaged by the garage fire that occurred on December 14, 2020. That indemnity was made pursuant to the Policy appraisal award issued by the 3-member appraisal panel on December 13, 2022, in the amount of \$381 ,000.

Based on the appraisal award, State Farm's prior payment of the full appraisal award amount (\$381,000), and all applicable Policy provisions, it is State Farm's position that it has paid all indemnity owed to you under Coverage A for the dwelling loss, with the possible exception of any code upgrade costs actually incurred.

(UMF 27.)

Brief Summary of Relevant Policies

Plaintiffs’ Policy includes Coverage A1 — Replacement Cost Loss Settlement — Similar Construction which states, in part:

We will pay up to the applicable limit of liability shown in the Declarations, the reasonable and necessary cost to repair or replace with similar construction and for

the same use on the premises shown in the Declarations, the damaged part of the property covered under SECTION I - COVERAGES, COVERAGE A - DWELLING.

We will not pay for increased costs resulting from enforcement of any ordinance or law regulating the construction, repair or demolition of a building or other structure, except as provided under Option OL - Building Ordinance or Law Coverage.

(UMF 4.) The Policy also provides increased Coverage A dwelling limits under Option ID:

Option ID - Increased Dwelling Limit. We will settle losses to damaged building structures covered under COVERAGE A - DWELLING according to the SECTION I - LOSS SETTLEMENT provision shown in the Declarations.

If the reasonable and necessary cost to repair or replace damaged building structures exceeds the applicable limit of liability shown in the Declarations, we will pay the additional amounts not to exceed:

1. the Option ID limit of liability shown in the Declarations to repair or replace the Dwelling; or
2. 10% of the Option ID limit of liability to repair or replace building structures covered under COVERAGE A - DWELLING, Dwelling Extension.

(UMF 6; DAMF 19.)

The stated dwelling limit shown in the Declarations was \$483,500. (UMF 3; DAMF 18.) Plaintiffs' Policy also includes an appraisal provision, which states:

In case you and we shall fail to agree as to the actual cash value or the amount of loss, then, on the written request of either, each shall select a competent and disinterested appraiser and notify the other of the appraiser selected within 20 days of the request.

The appraisers shall then appraise the loss, stating separately actual cash value and loss to each item; and, failing to agree, shall submit their differences, only, to the umpire. An award in writing, so itemized, of any two when filed with us shall determine the amount of actual cash value and loss.

(UMF 21; DAMF 3.)

LEGAL ANALYSIS

1. Plaintiffs Were Not Entitled Under the Policy or the Law to Recover on Supplemental Claims for Costs Exceeding the Appraisal Award

Insurance Code § 2051.5 (hereinafter statutory references are to the Insurance Code) governs the measure of indemnity under an open policy providing replacement coverage. The statute states, under subsection (a)(1):

Under an open policy that requires payment of the replacement cost for a loss, the measure of indemnity is the amount that it would cost the insured to repair, rebuild, or replace the thing lost or injured, without a deduction for physical depreciation, or the policy limit, whichever is less.

(§ 2051.5, subd. (a)(1).) The statute further provides, under subsection (a)(2), a two-step payment structure for open policies requiring the insured to repair or replace the damaged property prior to collecting the replacement cost from the insurer:

If the policy requires the insured to repair, rebuild, or replace the damaged property in order to collect the full replacement cost, the insurer shall pay the actual cash value of the damaged property, as defined in Section 2051, until the damaged property is repaired, rebuilt, or replaced. Once the property is repaired, rebuilt, or replaced, the insurer shall pay the difference between the actual cash value payment made and the full replacement cost reasonably paid to replace the damaged property, up to the limits stated in the policy.

(*Id.*, subd. (a)(2).)

Plaintiffs' State Farm Policy provides replacement coverage but does not require that Plaintiffs repair, rebuild, or replace damaged property prior to collecting the replacement cost. Accordingly, section 2051.5(a)(1) controls here.

Plaintiffs acknowledge that section 2051.5, subdivision (a)(2) does not control. (Reply, at p. 8:16-18.) Plaintiffs assert that section 2051, subdivision (a)(1) is irrelevant but provides no explanation why. (*Id.*, at p. 8:12-15.) It is unclear to the court how section 2051.5, subdivision (a) – which establishes the measure of indemnity for open policies – would not apply at all to Plaintiffs' State Farm Policy. Plaintiffs also erroneously assert that Defendant agrees that subsection (a)(1) is irrelevant. (*Ibid.*) In fact, Defendant correctly asserts that it controls. (Oppo., at p. 17:5-10.)

Under section 2051.5, subdivision (a)(1), “the measure of indemnity is the amount that it would cost the insured to repair, rebuild, or replace the thing lost or injured, without a deduction for physical depreciation, or the policy limit, whichever is less.” That is precisely what Plaintiffs received in the appraisal award: the replacement cost value of damaged property, as determined in an appraisal, without a deduction for depreciation. (Schaffer Decl., Ex. F, Appraisal Award, at p. 1, 2; and Ex. A. (Appraisal Award), at p. 34.)

The plain language of section 2051.5, subdivision (a)(1) – that “the measure of indemnity is the amount that it *would* cost” to replace the damaged property – supports that the determination of the replacement cost is a prospective exercise. Indeed, it must be, as section 2051.5, subdivision (a)(1) governs replacement policies that do *not* require repairs to be completed before the collecting replacement costs. Unlike the subsection (a)(2), subsection (a)(1) does *not* require that the insurer pay the difference between the actual cash value payment made and the full replacement cost reasonably paid to replace the damaged property.

Plaintiffs argue that benefits under Option ID (Increased Dwelling Limit) are measured “[a]fter the necessary replacement/repair is complete and expense incurred.” (PSS 9; Shaffer Decl., Ex. R, State Farm Operations Guide No. 75-107, STF 006929.) However, as Defendant explain – and as the express terms in the Declarations show – Option ID is triggered where the replacement cost to repair or replace damaged structures exceeds the applicable limits under Coverage A:

Option ID – Increased Dwelling Limit. We will settle losses to damaged building structures covered under COVERAGE A – DWELLING according to the SECTION I – LOSS SETTLEMENT provision shown in the Declarations.

If the reasonable and necessary cost to repair or replace damaged building structures exceeds the applicable limit of liability shown in the Declarations, we will pay the additional amounts not to exceed:

1. the Option ID limit of liability shown in the Declarations to repair or replace the Dwelling; or
2. 10% of the Option ID limit of liability to repair or re place building structures covered under COVERAGE A – DWELLING, Dwelling Extension.

(Shaffer Decl., Ex. A, Policy and Declarations, STF006755.) Here, the replacement cost determined in the appraisal award was \$381,000.00, which is below Plaintiffs’ Coverage A policy limit of \$483,500.00. Under the terms of the Policy, Option ID was not triggered. Defendant raised this argument in its opposition and Plaintiffs did not address it in their reply. Here, Option ID does not entitle Plaintiffs to supplemental claims for incurred costs, nor does it support an interpretation that Coverage A requires indemnification of actual costs incurred, as opposed to an estimate or appraisal of the replacement cost to be provided up front.

Plaintiffs’ other arguments that the Policy allows for supplemental claims for incurred costs likewise fail. Plaintiffs argue that language in the Policy contemplates loss settlement for actual incurred costs, rather than estimated costs of replacement – including a heading titled “Replacement Cost Loss Settlement” and language promising to pay “the reasonable and necessary cost to repair.” This argument is not persuasive, especially given Defendants’ statutory obligation under section 2051.5, subdivision (a)(1) to indemnify Plaintiffs for the replacement costs of the damage prior to the actual repair or replacement. The language in State Farm’s Policy is consistent with the measure of indemnity established in section 2051.5, subdivision (a)(1).

The arbitration is final and determined the amount of the loss as measured by the replacement value. Plaintiffs agree throughout their briefing that the arbitration award is final is not being challenged. However, they argue that the award does not bar them from obtaining additional monies spent after the arbitration award. Their position is not supported by the law or the insurance policy.

On March 22, 2021, State Farm wrote the Plaintiffs: “Our payment in the amount of \$161,718.01 in settlement of your Dwelling claim is enclosed.” (Schaffer Decl., Ex. D, STF3664.) Plaintiffs thought the amount was too low and demanded appraisal pursuant to section 2071 of the value of the loss under Coverage A-Dwelling. (Schaffer Decl., Exs. S, STF745, U, STF3934; UMF 35.) Sections 2070 and 2071 control the appraisal process. “ ‘Since its substance was first enacted in 1909, ... section 2071 has directed that the standard form for fire insurance policies include an appraisal provision to settle disagreements concerning *the amount of loss.*’ (*Gebers v. State Farm General Ins. Co.* (1995) 38 Cal.App.4th 1648, 1651, 45 Cal.Rptr.2d 725, italics added.) The policy must provide for an appraisal when ‘the insured and this company shall fail to agree as to the *actual cash value or the amount of loss.*’ (§ 2071, subd. (a), italics added.) It must also state the appraisers ‘shall ... appraise the loss ... and, failing to agree, shall submit their differences, only, to the umpire. An award in writing, so itemized, of any two when filed with this company shall determine the amount of actual cash value and loss.’ (*Ibid.*, italics added.)” (*Kacha v. Allstate Ins. Co.* (2006) 140 Cal.App.4th 1023, 1032; accord *Louise Gardens of Encino Homeowners' Assn., Inc. v. Truck Ins. Exchange, Inc.* (2000) 82 Cal.App.4th 648, 652, fn. 2.) “This procedure is mandated by the statute.” (*Louise Gardens of Encino Homeowners' Assn., Inc. v. Truck Ins. Exchange, Inc.* at p. 652.) The parties submitted their dispute to arbitration and the arbitrators issued an arbitration award which set out the replacement cost value and actual cash value. ((Schaffer Decl., Ex. F at p. 1.) This appraisal award decides the loss under Coverage A Dwelling and complies with section 2071. Plaintiffs failed to appeal the contest this award.

Plaintiffs claim that they can still seek additional replacement costs because the language in the policy about the appraisal refers to “loss” and not “replacement costs. The policy, however, tracks the language of section 2071, which uses the word “loss.” Their attorney’s demand for the appraisal uses the word “loss.” (Schaffer Decl., Ex. U, STF3934.) Under the plain meaning of the policy, the loss is what Plaintiffs lost, their home, and the replacement cost is the manner of compensating for the lost, i.e., how to value the loss.

The case of *Devonwood Condominium Owners Assn. v. Farmers Ins. Exchange* (2008) 162 Cal.App.4th 1498 is instructive in demonstrating that the arbitrators’ determination is final. As stated in the opinion: “This dispute centers around Farmers's obligations under a written property insurance policy it issued to Devonwood, a California homeowners association. When a fire occurred in one of Devonwood's units, a Hercules, California, condominium in 2004, Devonwood submitted a claim for fire damage to Farmers. When the parties could not agree on the value of the *loss*, Devonwood demanded that an appraisal be conducted by a panel pursuant to the policy's appraisal provision. ... [¶] This appraisal panel, after holding hearings and considered evidence submitted by the parties, issued a unanimous written “appraisal of insurance claim award” in June 2006. The panel stated that it had considered all material facts and available information pertaining to Devonwood’s claim, and decided on “an appraisal Award as described

below which in the appraisal panel's opinion restores the building to its pre-loss condition," based on the condition of the property in April 2005. The panel then stated two categories of *replacement cost values*." (*Id.* at p. 1501 [emphasis added].) The parties did not dispute that the appraisal award was a "binding determination of the amount of loss" and did not dispute that "their contractual agreement regarding this appraisal award is consistent with the language contained in the standard form fire insurance policy of section 2071." (*Id.* at p. 1504.) The Court of Appeal reversed the trial court, which had revised the arbitration award, finding that the judgement did not conform to the appraisal award in violation of Code of Civil Procedure section 1287.4." (*Id.* at p. 1503.) The judgment was for a different amount than the amount in the appraisal and thus was improper. (*Id.* at p. 1506.)

The same process occurred here. State Farm offered its settlement for the Dwelling claim, Plaintiffs sought an appraisal for their dwelling, and the award provided compensation for that loss based upon replacement value, the language provided for in the policy. The appraisal was a binding determination on the amount of the loss. While the costs increased after the appraisal, had the costs gone down by the time Plaintiffs rebuilt, they would not have had to reimburse State Farm for the monies paid. Thus, there is nothing inherently unfair about the process. State Farm followed the requirements of the insurance policy and section 2051.5, subdivision (a), the language that controls in this case.

Plaintiffs further argue that State Farm's July 25, 2021, letter to Plaintiffs stated that an initial payment would be based of its estimate of damage and that "supplemental payments can be considered if additional repairs or increased charges are necessary." The statement that the initial payment would be based on its estimate is consistent with section 2051.5, subdivision (a), which contemplates a prospective assessment of the replacement cost. And the statement regarding supplemental payments for additional repairs or increased charges are necessary is consistent with Option OL, which provides benefits for repair costs driven by application building codes. Plaintiffs have affirmatively stated that Option OL does not bear on the dispute here. (Reply. at 9:19-24.)

2. *The Court Cannot Grant Summary Adjudication on Plaintiffs' Claim for Declaratory Relief or Defendant's Twenty-Second Affirmative Defense*

Plaintiffs seek a declaratory judgment stating the following:

- a. Pursuant to the Policy, State Farm's limit of liability was for the reasonable and necessary cost to make repairs – that is, the amount necessarily spent to make repairs, up to the limit of the Policy, including the increased limits afforded by Options ID and OL;
 - b. The filing of the appraisal award under the Policy and pursuant to Insurance Code § 2071 did not set the limit of State Farm's liability for replacement benefits or benefits under Option ID or Option OL; and
-

- c. State Farm's denial of the Dixon's claims for the reasonable and necessary cost of repair, on the basis that the appraisal award establishes for all purposes and for all time State Farm's indemnity obligation under the policy, violates the Policy

(FAC, ¶ 120.)

For the reasons addressed above, this motion must be denied as to all three declaratory statements.

To the first statement, as explained above, Plaintiffs have not established that they were entitled to the amounts "necessarily spent" to make repairs. The court interprets "necessarily spent" to mean the actual-incurred replacement costs, and not to include an estimation or appraisal of replacement costs. To the second statement, the appraisal award set the limit on State Farm's liability because Plaintiffs have not shown that any supplemental claims were required or allowed under the Policy or the law. And to the third statement, State Farm did not violate its Policy by denying Plaintiffs' supplemental claims for incurred costs, because the language of the policy does not require payment of incurred costs in this case.

For the same reasons, the court cannot grant summary adjudication of Defendant's twenty-second affirmative defense – "that State Farm satisfied its obligations under the policy by paying the appraisal award, and no further contract benefits are owed to plaintiffs" – in Plaintiffs' favor.

Accordingly, Plaintiffs' motion for summary adjudication is DENIED. Since Defendants did not file their own motion for summary adjudication, the court cannot determine the merits of these causes of action. The parties are to meet-and-confer to decide whether they can reach a stipulation regarding the import of the court's findings.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant State Farm shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 4

24-CLJ-05405

NAVY FEDERAL CREDIT UNION VS. JEFF P. SPRANZA

NAVY FEDERAL CREDIT UNION
JEFF P. SPRANZA

REA STELMACH

MOTION TO ENTER JUDGMENT PURSUANT TO CCP § 664.6

TENTATIVE RULING:

The unopposed Motion to Enter Judgment Pursuant to CCP § 664.6 (the “Motion”) brought by Plaintiff Navy Federal Credit Union is DENIED without prejudice.

In the notice of motion, plaintiff put the date of July 14, 2026, as the hearing date. Then, the clerk’s office changed the hearing date to August 25, 2026.

The court file shows a proof of service of the Motion filed on May 28, 2026, declaring service of the Motion upon defendant on May 29, 2026. The proof of service attached to the notice of motion is dated the day after the pleading was filed, which cannot be accurate. Further, the notice sent to defendant did not have the correct date.

There is no amended proof of service in the court file. Thus, defendant did not receive proper notice of the hearing date (Cal. Rules of Court, rule 3.1110(b)(1)) and, therefore, the court must deny the Motion because it lacks jurisdiction to hear it. (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the Court’s ruling for the Court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 5

25-CIV-07415

GINA ASUZANO VS. MICHAEL STONE, ET AL.

GINA ASUZANO
MICHAEL STONE

JONAH A TOLENO
PRO SE

ORDER TO SHOW CAUSE WHY THE ANSWER OF THE ENTITY DEFENDANTS SHOULD NOT BE STRICKEN AND
DEFAULT ENTERED IN FAVOR OF PLAINTIFF AND AGAINST ENTITY DEFENDANTS

TENTATIVE RULING:

On April 21, 2026, this court heard plaintiff Gina Asuzano's motion to strike defendants One Trade LLC and One Trade's answer to plaintiff's complaint. On April 20, 2026, the court issued the following tentative ruling, which was not opposed and was therefore, adopted at the hearing:

Plaintiff's unopposed motion to strike is DENIED, without prejudice. The court agrees with plaintiff's argument, but provides an opportunity for the business entity defendants to obtain counsel.

Corporations and other business entities may not represent themselves in court but must be represented by licensed counsel. (Bus. & Prof. Code, § 6125; *Birbrower, Montalbano, Condor & Frank v. Superior Court* (1998) 17 Cal.4th 119, 128-130; *Merco Constr. Eng'rs, Inc. v. Mun. Ct.* (1978) 21 Cal.3d 724, 730; *Thomas G. Ferruzzo, Inc. v. Superior Ct.* (1980) 104 Cal.App.3d 501, 504; *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 (*CLD Construction*).)

On November 14, 2025, defendant Michael Stone filed an answer on behalf of himself and defendants One Trade LLC and One Trade, a corporation (One Trade Corp.). According to the Complaint, Stone is founder, principal, and sole manager of One Trade LLC and is the founder and sole director of One Trade Corp. (Complaint, ¶ 4.) He does not provide a State Bar number on the answer or otherwise demonstrate that he is an attorney.

Plaintiff has moved to strike the answer as to defendants One Trade LLC and One Trade Corp. (the entity defendants) on the basis that those defendants are not represented by counsel, which renders their answers a nullity.

A similar situation was addressed *CLD Construction, supra*, 120 Cal.App.4th 1141 There, the plaintiff corporation filed a complaint in propria persona. (*Id.*, at p. 1144.) The trial court granted a motion to strike the complaint, without leave to amend, on the basis that the corporation filed it without representation and it was therefore a nullity. (*Id.*, at p. 1145.) The Court of Appeal reversed the ruling, holding that "it is more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court." (*Id.*, at p. 1149.) The Court of Appeal further explained: "At such an early stage, denial of a motion to

strike or granting leave to amend to show representation by counsel on such terms as the trial court deems just will not frustrate the rule's purpose of guarding against the unlicensed practice of law and preventing its attendant problems.” (*Id.*, at p. 1150.)

Here, plaintiff has likewise filed a motion to strike a pleading filed by entity defendants without legal representation, in the early stage of litigation. Consistent with *CDC Construction*, and to serve judicial economy and fairness, the court exercises its discretion to deny the motion to strike, without prejudice, and provide the entity defendants time to retain counsel. (*CLD Construction, supra*, 120 Cal.App.4th at pp. 1145, 1149-1150.)

The court sets an Order to Show Cause Hearing for August 25, 2026 at 2:00 p.m. in Department 4 for the entity defendants to show they have an attorney representing them or to show cause why their answer should not be stricken and default entered in favor of plaintiff and against the entity defendants. The entity defendants shall either file an appearance by an attorney to represent them no later than seven court days before the hearing or file a response within the same deadline showing why their answer should not be stricken and default entered.

(Min. of Apr. 21, 2026; see also plaintiff’s Notice of Ruling filed Apr. 23, 2026; signed order filed and served Apr. 23, 2026.) On April 21, 2026, the clerk of the court served the notice of the order to show cause on all parties. The court notes that although the court mailed the notice of the order to show cause hearing and notice of the April 23, 2026 order to defendants at their address of record, the notices have been returned. It is defendants responsibility to update their address. (*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 31; Cal. Rules of Court, rule 2.200.)

No attorney has substituted in for the entity defendants and there has been no response to the order to show cause by defendants despite the court warning them of the consequences of their failure to appear by counsel and providing them time to find a lawyer.

Accordingly, the court strikes the answer of One Trade LLC and One Trade and orders their default entered.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

25-CIV-09171

ALEJANDRO CARRILLO VS. GENERAL MOTORS LLC

ALEJANDRO CARRILLO
GENERAL MOTORS LLC

CHAD A. DAVID
H, PAUL EFSTRATIS

PLAINTIFF'S MOTION TO DETERMINE THE AMOUNT OF REASONABLE ATTORNEY'S FEES, COSTS AND EXPENSES TO BE PAID BY DEFENDANT

TENTATIVE RULING:

Plaintiff Alejandro Carrillo's Motion to Determine the Amount of Reasonable Attorney's Fees, Costs and Expenses to be Paid by Defendant General Motors LLC ("GM") is GRANTED IN PART.

As a preliminary matter, it appears the memorandum of points and authorities in opposition was intended to be accompanied by a declaration. (See, e.g., Aug. 12, 2026 Memorandum of Points & Authorities, p. 6, ll. 5–7.) However, no such declaration has been filed.

As another preliminary matter, in the memorandum of points and authorities in opposition, GM cites to a trial court opinion—not as evidence of prevailing markets rates or other permissible purposes—but as authority for a legal proposition. Trial court opinions should not be cited and are of no precedential value. (*The Pep Boys Manny Moe & Jack of California v. Old Republic Ins. Co.* (2023) 98 Cal.App.5th 329, 341; see *Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744, 761 [citation to trial court order as legal authority was improper].)

There is no dispute that the claims in this action have predominantly been settled, and the parties have agreed that Plaintiff Alejandro Carrillo and may seek, via this motion as prevailing plaintiff under the Song-Beverly Consumer Warranty Act ("SBCWA"), an award of costs and expenses reasonably incurred in bringing the action. (May 7, 2026 Declaration of Chad A. David ("David Decl."), ¶¶ 4–5, exh. 1.)

A buyer who prevails in an action under the SBCWA is entitled to recover costs and expenses, including attorney fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105.) The Legislature has recognized that lawyers who take on Song-Beverly cases that seek to vindicate fundamental public policies will receive reasonable attorney fees. (*Reynolds, supra*, at p. 1111.)

Generally in this county, the parties have been able to negotiate their attorneys' fees in Song-Beverly actions without the necessity of bringing a motion. No agreement, however, was reached in this case. Thus, the Court decides the issue.

Attorney fees in a SBCWA case are awarded based upon the lodestar method. (*Reynolds, supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorney fee award. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) “The major factors the trial court must consider in determining an attorneys’ fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney’s success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on the case.” (*Niederer v. Ferreira* (1987) 189 Cal.App.3d 1485, 1508, citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343.) “[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group, supra*, at p. 1095.)

A. Hours Expended

As to the reasonableness of the time worked, this Court has a responsibility to review the billing records. In *Ketchum v. Moses*, our Supreme Court explained: “In referring to ‘reasonable’ compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.)

In *Harman v. City and County of San Francisco* (2006) 136 Cal.App.4th 1279 the court analyzed the considerations relevant to this initial lodestar determination by looking to *Hensley v. Eckerhart* (1983) 461 U.S. 424, in which the court “instruct[ed] that the initial lodestar calculation should exclude ‘hours that were not reasonably expended’ ” and drew an analogy to private billing practices: “ ‘Counsel for the prevailing party should make a good-faith effort to exclude from a fee request hours that are excessive, redundant, or otherwise unnecessary, just as a lawyer in private practice ethically is obligated to exclude such hours from his fee submission. ‘In the private sector, ‘billing judgment’ is an important component in fee setting. It is no less important here. Hours that are not properly billed to one’s client also are not properly billed to one’s adversary pursuant to statutory authority.’ ” (*Harman v. City and County of San Francisco*, at p. 1310, quoting *Hensley v. Eckerhart*, at p. 434.) “Counsel is not entitled to compensation for ... work merely because it was performed. Rather, it is counsel’s burden “to persuade the trial court the work was reasonably necessary, both as to the particular tasks performed and the amount of time devoted to them.” (*Howell v. State Dept. of State Hospitals* (2024) 107 Cal.App.5th 143, 158–159 [quotation marks and citation omitted].)

“[C]ontemporaneous time records are the best evidence of lawyers’ hourly work,” and here Carrillo has provided such records. (*Taylor v. County of Los Angeles* (2020) 50 Cal.App.5th 205, 207; see David Decl., ¶ 13, exh. 7.) These records reflect 22.2 hours worked by attorney Chad David and 11.2 hours worked by paralegals Lisa Tyler, Andrew Zazzi, and Inigo Gatus in the

commencement, prosecution, and settlement of this matter, as well as the instant fee motion. (*Ibid.*)

GM takes issue with four categories of time entries in these records, arguing that the time spent on the tasks described was either duplicative or excessive and that time for certain tasks be entirely excluded. The first category is 3.8, 1.1, and 2 hours billed for drafting the complaint, the initial disclosures, and the mediation brief, respectively. (See David Decl., exh. 7.) GM argues that the papers were created from templates, such that the time spent on them was unreasonably long. However, the time appears entirely reasonable. Even when using templates, an attorney is required review the drafted paper with care and ensure the accuracy of case-specific facts and law.

The second category is the time billed in 0.2-hour increments by non-attorney staff. (See David Decl., exh. 7.) As Carrillo points out, most of the entries to which GM object were already excluded from the calculation of Carrillo's request. Nonetheless, there are a number of 0.2 hour entries that should not have taken more than twelve minutes, and the court finds that these the reasonable time for these tasks is 0.1 rather than 0.2 hours and reduces the paralegal time accordingly.

The third category is the 6.1 hours preparing and making the instant fee motion. (See David Decl., exh. 7.) There is no dispute that fees may be awarded for a fee motion. Instead, GM contends that, because Carrillo refused to provide detailed billing records during settlement negotiations, the fees for the motion should be disallowed. The Court should not attempt to direct the manners, tactics, or strategies in which or with which litigants negotiate settlement in this manner—there is no legal requirement that a plaintiff settle an award of fees, much less disclose certain information to do so. The Court finds the 6.1 hours reasonable incurred, but the hourly rate of \$795 per hour too high. The Court finds the reasonable hourly rate to be \$350.00 per hour.

The fourth category is the 5.0 hours of time anticipated to be spent as of May 22, 2026, when the declaration in support of the motion was made. (See David Decl., ¶ 19.) The SBCWA only provides for “cost and expenses ... reasonably incurred,” and attorney fees “based on actual time expended.” (Civ. Code, § 1794, subd. (d).) Speculative fees for future tasks that may or may not come to be incurred and based on time that may or may not come to be expended by an attorney do not fall within the statute. In response to this objection, Carrillo only cites to authority for the proposition that fees incurred in bringing the fee motion and none for the proposition that an award of fees incurred may be based on evidence predicting what fees will be incurred. If GM contests the tentative ruling, the Court will grant an additional fee request for the time spent preparing for and attending the hearing.

The Court finds the remainder of the claimed time to have been reasonably incurred.

B. Hourly Rates

As to the hourly rate, the reasonable hourly rate is the reasonable hourly rate for San Mateo County, the venue of this case. “ ‘The reasonable hourly rate is that prevailing in the community for similar work.’ ” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler*, *supra*, 22 Cal.4th at p. 1095].) This court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney’s services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds*, *supra*, 47 Cal.App.5th at pp. 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.”] (citations omitted)].) This Court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer. The Laffey matrix is another resource to determine a reasonable hourly rate. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702 [court can use Laffey Matrix for reasonable hourly rate].)

Here, Carrillo has provided evidence in the form of the declaration of his counsel and approved rates for similar work supporting the hourly rates he claims for his attorney and the attorney’s staff. (David Decl., ¶¶ 7–11, 17 exhs. 1–6.) GM objects to the fact that the referenced examples of approved rates were in different counties. As Carrillo correctly observes, the prevailing rates in San Mateo County are in fact higher than some of those counties. The Court finds that \$795.00 is a reasonable rate for David except for the work for preparing the fee motion, which hourly rate the court has reduced to \$350.00 per hour as set forth above. The Court finds \$250.00 per hour for the paralegals is reasonable.

GM also objects to the rates on the basis that this was a relatively simple case under the SBCWA that involved no trial or formal discovery. However, GM provides no evidence that the prevailing rate for such a case is lower in the community. GM argues that the rates should be discounted a la hospital bills, citing *Howell v. Hamilton Meats & Provisions, Inc.* (2011) 52 Cal.4th 541, 561–562, but the point of fee-shifting under the SBCWA is to incentivize and compensate attorneys for the opportunity cost of forgoing lucrative work in other practice areas. That is, a rate is not unreasonable simply because it was incurred on a contingency basis and will never be paid in full by the plaintiff.

C. Conclusion

The Court grants and denies the request as set forth above. In preparing the formal order, Carrillo shall include a full calculation of the lodestar (i.e., setting forth the hours of attorney work and

hours of paralegal work with the above deductions having been performed and laying out the arithmetic to reach a single dollar sum).

The Court also awards costs in the amount of \$812.53, which are reasonable and not disputed. (See Civ. Code, § 1794, subd. (d) [prevailing party may recover all reasonably incurred costs].)

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Plaintiff shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 7

26-CIV-03316

MALCOLM DURHAM VS. DIANA C. GUADALUPE CHIPANA, ET AL.

MALCOLM DURHAM

PRO SE

DIANA C. GUADALUPE CHIPANA

PRO SE

MOTION TO STAY DISCOVERY PENDING HEARING ON DEMURRER

TENTATIVE RULING:

For the reasons stated below, Defendant Diana Guadalupe Chipana's dba Wealth Recovery Solutions ("Defendant") "Motion to Stay Discovery Pending Hearing on Demurrer," filed July 17, 2026, is DENIED.

Background. Plaintiff filed this case on April 29, 2026. The Complaint seeks (1) to set aside a default judgment entered against Plaintiff in a prior lawsuit in the Santa Clara County Superior Court; (2) to set aside all charging orders against Plaintiff's interest in Vida Capital Group, LLC; (3) "dismissal" of the underlying lawsuit filed in the Santa Clara County Superior Court; (4) a finding that Defendant has violated Calif. Bus. & Prof. Code § 17200; and (5) damages for "abuse of legal process." Defendant Chipana has filed a demurrer to Plaintiff's Complaint, arguing that all of Plaintiff's asserted claims are barred as a matter of law. The demurrer hearing is set for September 22, 2026 (less than one month from now).

According to Defendant's moving papers, on June 16, 2026, Plaintiff served three sets of written discovery on Defendant: (1) Form Interrogatories (Set One); (2) Requests for Production of Documents ("RFPs") (Set One), and (3) Requests for Admission ("RFAs"). According to the motion, Defendant's responses to the foregoing discovery requests was due on July 21, 2026 (about one month ago).

Defendant's motion argues that the Court is likely to sustain Defendant's demurrer to all asserted claims, and therefore, that good cause exists to relieve Defendant of the expense/burden of responding to Plaintiff's form interrogatories and RFPs, and the burden of producing responsive documents, until thirty (30) days after service of notice of entry of the Court's ruling on Defendant's demurrer. The motion asks for two alternative forms of relief, but they are essentially the same request, worded slightly differently. (See Notice of Motion.)

Application. The motion is denied. Defendant asks the Court to deviate from the normal rules governing discovery. As a general rule, the filing of a demurrer does not stay discovery. Code of Civil Procedure sections 2030.020, subdivision (b) and 2031.020, subdivision (b) provide that a plaintiff may propound interrogatories and requests for production of documents to a defendant ten (10) days after service of the summons on, or appearance by, the defendant. Discovery normally proceeds, regardless of whether the pleadings are at issue. Defendant's motion essentially asks the Court to predict the outcome of the demurrer, and to suspend Plaintiff's

statutory discovery rights before the demurrer has been decided. The Court finds no compelling reason why this case should be treated as an exception to the general rule.

The case law cited by Defendant does not persuade the Court to reach a different conclusion. The court in *Williams v. Superior Court* (2017) 3 Cal. 5th 531, 541 recognized that trial courts have discretion to stay discovery, but also that courts must construe the facts before it liberally in favor of discovery. *Terminals Equip. Co. v. City & Cnty. of San Francisco* (1990) 221 Cal.App.3d 234, 245 involved a discovery stay issued *after* the trial court had sustained a demurrer on grounds that plaintiff failed to state any cause of action, and where plaintiff was seeking production of privileged documents. In *Silver v. City of Los Angeles* (1966) 245 Cal.App.2d 673, 674, the trial court disallowed certain discovery *after* the court had ruled that plaintiff's *second amended complaint* failed to state any cause of action. The court in *Pacific Architects Collaborative v. State of California* (1979) 100 Cal.App.3d 110, 126 found that a trial court did not abuse its discretion in barring certain depositions until after a ruling on a dispositive motion for summary judgment. *Coriell v. Superior Court* (1974) 39 Cal.App.3d 487, 489 held that a trial court had improperly stayed discovery in a class action case pending a ruling on a motion involving plaintiff's class status. None of these cases support Defendant's request for a discovery stay here. Instead, as the Court of Appeal stated over thirty-five years ago and the statement remains true today, "Pleading deficiencies generally do not affect either party's right to conduct discovery..." (*Mattco Forge, Inc. v. Arthur Young & Co.* (1990) 223 Cal.App.3d 1429, 1436; *Cal. Prac. Guide Civ. Pro. Before Trial*, 21 8:58 (June 2026 update).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 8

26-CIV-04417

EDWARD J. MOREY VS. CSAA INSURANCE EXCHANGE, ET AL.

EDWARD J. MOREY
CSAA INSURANCE EXCHANGE

GAIL J. LAMCHICK
ROBERT K. PHILLIPS

MOTION TO COMPEL ARBITRATION AND FOR APPOINTMENT OF ARBITRATOR

TENTATIVE RULING:

Petitioner Edward J. Morey's Petition for Order Compelling Arbitration and Appointment of Arbitrator is GRANTED-IN-PART, as follows:

This Petition to Compel Arbitration relates to an underlying incident on November 15, 2020 during which Petitioner Edward J. Morey sustained bodily injury caused by an underinsured motor vehicle driven by Tyler Della, who was under the influence of alcohol. The insurer that issued the policy covering the vehicle driven by Tyler Della has paid its policy limit to Petitioner. Petitioner was covered by an automobile insurance policy issued by Respondent CSAA Insurance Exchange ("CSAA"). Petitioner was also covered by an umbrella insurance policy from Respondent Chubb Indemnity Insurance Company ("Chubb") providing excess uninsured and underinsured motorist bodily injury liability insurance coverage of \$1,000,000.

Petitioner here moves to compel a single consolidated arbitration pursuant to apparent arbitration agreements in each relevant insurance policy.

California law strongly favors arbitration, finding it a speedy and relatively inexpensive manner of dispute resolution. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 97.) A party to an arbitration agreement may seek a court order compelling the parties to arbitrate a dispute covered by the agreement. (Code Civ. Proc., § 1291.2.) The court must grant the petition to compel arbitration unless it finds the right to compel arbitration has been waived by the moving party; grounds exist for the revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (*Id.*, § 1281.2.) Private arbitration is a matter of agreement between the parties and is accordingly governed by contract law. (*Platt Pacific, Inc. v. Andelson* (1993) 6 Cal.4th 307, 313.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) Petitioner, as the one bringing the motion, bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense. (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236 [citing *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972].)

Here although Petitioner does not provide the arbitration agreement, both respondents, CHUBB Indemnity Insurance Company and CSAA Insurance Exchange, agree that there are arbitration agreements and they do not oppose a consolidated arbitration.

Respondent CSAA has filed an Opposition indicating that while they are not opposed to selecting an arbitrator and commencing arbitration or to a consolidated arbitration hearing, they oppose Petitioner's request that both Respondents be ordered to jointly retain a single law firm and request for an award of costs. Petitioner has withdrawn both requests to which Respondent CSAA objects.

Respondent CHUBB Indemnity Insurance filed a declaration stating that they oppose only the request that only one counsel be retained to represent both CSAA and Chubb. Because that request has been withdrawn, Respondent Chubb does not oppose Petitioner's remaining requests.

The Petition proposes that the Court select an arbitrator from the following list:

- Hon. Alfred G. Chiantelli (Ret.)
- Debra Bogaards, Esq.
- Hon. Bonnie Sabraw (Ret.)
- Richard Phelps. Esq.

No opposition was presented as to any of the proposed arbitrators. The Court, therefore, appoints the Hon. Alfred G. Chiantelli (Ret.) pursuant to the arbitration agreements contained within the relevant insurance policies pursuant to the parties' agreement as indicated by the filings discussed herein to conduct the consolidated arbitration. If he is unavailable, the Court then appoints the Hon. Bonnie Sabraw (Ret.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Petitioner shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 9

26-CIV-05203

GAIL WILKERSON VS. EXTRA SPACE STORAGE INC., ET AL.

GAIL WILKERSON

PRO SE

EXTRA SPACE STORAGE INC., A DELAWARE CORPORATION

MOTION FOR PRELIMINARY INJUNCTION

TENTATIVE RULING:

Pro se plaintiff Gail Wilkerson's motion for preliminary injunction is DENIED WITHOUT PREJUDICE.

Initially, the Court notes there is no proof of service upon Defendant Extra Space Storage Inc. of the instant motion. However, Defendant filed an opposition which waives the defect. (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1288.)

Background

Plaintiff allegedly has been a customer of defendant Extra Space Storage Inc. at their East Palo Alto facility for over 15 years where she stored personal property in Unit A4. (Compl. ¶ 4.) The underlying action arose after defendant scheduled a lien sale of the contents of Unit A4 for July 7, 2026. at 10:00 a.m., based on a claimed lien amount of \$1,479.15. (Compl. ¶ 9.) Plaintiff filed the instant action seeking to enjoin defendant from their action.

Defendant opposes, contending that the motion fails for several reasons, including (1) Plaintiff's motion does not satisfy California Code of Civil Procedure section 527 because it is not based on a verified complaint or affidavits and because notice was not provided to Defendant; (2) Plaintiff failed to meet the burden required for injunctive relief; (3) the scope of the requested relief far exceeds preservation of the status quo; and (4) Plaintiff has agreed to amend her pleading.

Legal Standard

Code of Civil Procedure section 527, subdivision (a) provides in part that: "An injunction may be granted at any time before judgment upon a verified complaint, or upon affidavits if the complaint in the one case, or the affidavits in the other, show satisfactorily that sufficient grounds exist therefor." The standard for the issuance of a preliminary injunction is as follows:

"As a general matter, the question whether a preliminary injunction should be granted involves two interrelated factors: (1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (*White v. Davis* (2003) 30 Cal.4th 528,554 [133 Cal.Rptr.2d 648, 68 P.3d 74] (*White*)); see *Butt v. State of*

California (1992) 4 Cal.4th 668, 677-678 [15 Cal.Rptr.2e 480, 842 P.2d 1240].) Typically, the trial court's evaluation of the relative balance of harms compares the interim harm the plaintiff is likely to sustain if the injunction is denied to the harm the defendant is likely to suffer if the preliminary injunction is issued. (*White, supra*, at p. 554.) The potential merit and interim harm as described as interrelated factors because the greater the plaintiff's showing on one, the less must be shown to the other to obtain an injunction. (*Butt v. State of California, supra*, at p. 678.) The goal of this test is to minimize the harm that an erroneous interim decision would cause. (*White, supra*, at p. 554; *People v. Uber Technologies, Inc.* (2020) 56 Cal.App.5th 266, 284 [270 Cal.Rptr.3d 290].)

(*Tulare Lake Canal Co. v. Stratford Public Utility Dist.* (2023) 92 Cal.App.5th 380, 396-97.)

“Plaintiff carries the burden of proof and persuasion on these issues.” (*Drakes Bay Oyster Co. v. California Coastal Com.* (2016) 4 Cal.App.5th 1165, 1172 [citing *O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481]. The Court recognizes that plaintiff needs only show that she is “likely to prevail” however plaintiff must still support her argument(s) with admissible evidence to sustain her burden. (Code Civ. Proc. § 527 subd. (a); see also *Finnie v. Town of Tiburon* (1988) 199 Cal.App.3d 1, 14–15 [“...while the injunction may rest upon either a verified complaint or affidavits, the law is settled that the allegations of either must be factual; conclusory averments in either are insufficient to support issuance of an injunction.”].) An **unverified** complaint is not evidence. (Contra, *Riviello v. Journeymen Barbers, etc., Union*, (1948) 88 Cal.App.2d 499, 501 [verified evidence may support an injunction, emphasis added].)

Discussion

Here, Plaintiff's complaint, while signed, is not verified. Verification, the process described below, is one of the required manners to present a factual basis for the instant motion under Code of Civil Procedure section 527, subdivision (a).

In all cases of a verification of a pleading, the affidavit of the party shall state that the same is true of his own knowledge, except as to the matters which are therein stated on his or her information or belief, and as to those matters that he or she believes it to be true; and where a pleading is verified, it shall be by the affidavit of a party, unless the parties are absent from the county where the attorney has his or her office, or from some cause unable to verify it, or the facts are within the knowledge of his or her attorney or other person verifying the same. ... A person verifying a pleading need not swear to the truth or his or her belief in the truth of the matters stated therein but may, instead, assert the truth or his or her belief in the truth of those matters “under penalty of perjury.”

(Code Civ. Proc., § 446, subd. (a).)

Additionally, the instant motion represents that it is based on a “Declaration of Gail Wilkerson filed concurrently herewith” but no declaration or exhibits are appended to the motion. Accordingly, because “a preliminary injunction must rest on *either* a verified pleading *or* facts

shown by affidavit.’ (Code Civ. Proc., § 527, subd. (c)(1).)” plaintiff’s request is DENIED. (*Integrated Dynamic Solutions, Inc. v. VitaVet Labs, Inc.* (2016) 6 Cal.App.5th 1178, 1185.)

The Court is aware plaintiff is proceeding pro se however our legal standards require that the Court apply the rules of practice and procedure equally to self-represented litigants and represented litigants alike. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [a party’s election to act as his own attorney does not entitle him to lenience as to the rules of practice and procedure].) To that end, a practice pointer in Weil & Brown’s well-known deskbook, *California Practice Guide: Civil Procedure Before Trial*, cautions “[b]ecause pleadings are supposed to contain ultimate rather than evidentiary facts (*see* ¶ 6:123), a pleading [alone] may not establish the facts necessary to support an injunction. Therefore, it is better practice to rely on declarations when seeking injunctive relief.” (Weil & Brown (*Cal. Practice Guide: Civil Procedure Before Trial* § 9:501.1 (TRG (June 2026 update)).)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Defendant shall prepare a written order consistent with this ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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